

lead to the belief on the part of the proctors that immorality was likely to result therefrom.]

A great deal has been said by the counsel for the plaintiff about the vice-chancellor not having heard or examined anybody on oath. For the purpose of to day, I lay it down to you as law that the vice-chancellor was not bound to administer an oath, and that the information of the proctors and the examination of the plaintiff herself was a sufficient hearing and examination to warrant him in committing her to prison as he did.

His Lordship concluded by leaving three questions to the jury,—first, whether the proctors and the vice chancellor had reasonable cause of suspicion that the plaintiff was in company with the under-graduates for idle, disorderly, and immoral purposes, —secondly, whether the vice-chancellor duly heard and examined the plaintiff,—thirdly, whether the place of imprisonment and treatment of the plaintiff therein were proper and reasonable.

The jury, after considerable hesitation, and after a long discussion had taken place between them and the court and the respective counsel, found that the proce-[540]-tors had reasonable cause for suspicion; and, in respect of the hearing and examination of the plaintiff, that the defendant had not made due inquiry into her character, and that the punishment was undeserved: but that the complaint of the prison and the treatment therein was unfounded.

After some further discussion as to the effect of this finding of the jury, his Lordship directed a verdict to be entered for the plaintiff, at the same time intimating an opinion that it was an imperfect verdict. The jury assessed the damages at 40s.

Edwin James, Q. C., in Easter Term last, moved, on behalf of the plaintiff, for a new trial on the ground of misdirection on the part of the learned judge in telling the jury that a warrant in writing for the commitment of the plaintiff was not necessary (*Ex parte Gray*, 2 D. & L. 539); and also in the construction put upon the charter (as to which he submitted that "persons suspected of evil" did not mean "persons who had placed themselves in such a position that their acts might result in evil," but "persons whose previous conduct and character rendered them objects of reasonable suspicion," which was not pretended to be the case with the present plaintiff); and in omitting to tell the jury that there was no legal hearing and examination of the plaintiff by the defendant before her commitment (as to which he submitted that every hearing must be conducted according to known legal principles, the witnesses in support of a charge being examined in the presence of the accused,—a right recognized by the 2nd section of the Prisoners' Counsel Act, 6 & 7 W. 4, c. 114, and the case of *The King v. Crowther*, 1 T. R. 125); and also in omitting to tell the jury that the gaol in question was a private gaol, and that the defendant had no right to commit the [541] plaintiff thereto. He also moved for a new trial on the ground of the inadequacy of the damages.

The court suspended its decision upon this motion until the defendant should have moved to enter the verdict for him pursuant to the leave reserved to him at the trial, —as to which, vide ante, p. 536.

Sir Fitzroy Kelly, Q. C., on a subsequent day, moved on the part of the defendant, for a rule to shew cause why the verdict should not be entered for him upon the above finding. He submitted that the imprisonment complained of was a judicial act by the defendant, a judge of a court of record, acting bona fide in a matter in which he had jurisdiction, and therefore not the subject of an action, even though he erred in point of fact or of law, or had been wanting in prudence or discretion: and he referred to *Gronowelt v. Burwell*, 1 Salk. 200, 396, 3 Salk. 354, 12 Mod. 386, Holt, 184, 395, Comb. 76, 1 Lord Raym. 213, 454, Carth. 421, 491, *Hamond v. Howell*, 1 Mod. 184, 2 Mod. 218, *Garnett v. Ferrand*, 6 B. & C. 611, 9 D. & R. 657, and *Ex parte Death*, 18 Q. B. 647.

Erle, C. J., suggested that a rule nisi should be granted upon the points urged by Sir F. Kelly, and that, upon the discussion of that rule, the plaintiff should be at liberty to urge the several points upon which she relied, —saving as to the amount of damages. The rule was ultimately drawn up as follows:—

"It is ordered that the plaintiff, upon notice of this rule to be given to her or her attorney, shall shew cause to this court, on, &c., why the verdict found on the trial of this cause at, &c. should not be set aside, and instead thereof a verdict be entered for the defendant, pursuant to leave reserved, on the grounds,—[542] first, that the